

Court No. - 2

Case :- WRIT - C No. - 40419 of 2009

Petitioner :- Mahendra Pratap Singh

Respondent :- Kanpur Electricity Supply Company Ltd. (Kesco) And Others

Petitioner Counsel :- H.N. Singh, B. Narayan Singh

Respondent Counsel :- Mridul Tripathi

Hon'ble Ashok Bhushan, J.

Hon'ble Ram Autar Singh, J.

Heard Mridul Tripathi for the respondents.

Learned counsel for the petitioner contends that the whole assessment is based on a report obtained by the Company which had been supplying the meter. He submits that the petitioner has himself informed the respondents about the burnt meter and the notice was issued to the petitioner on 01/11/2008 for appearing on 05/11/2008 at Udaipur on inspection. He submits that the said notice dated 01/11/2008 itself was dispatched on 05/11/2008. He further submitted that the inspection has not been done in accordance with paragraph 5.6 read with 5.8 of the U.P. Electricity Supply Code 2005. He submits that the report which was obtained was not the report of the licensee laboratory nor from any independent laboratory. He submits that as soon as the petitioner came to know about the notice dated 01/11/2008, he submitted a representation on 11/11/2008 requesting the meter to get tested from the Director Electrical Safety which has not been done. Submission is that earlier the matter was remitted for deciding the objection, but the Executive Engineer while deciding the objection has not adverted to the procedure required for testing of a burnt meter. Submission needs scrutiny.

Let a counter affidavit be filed within three weeks. In the meantime, no recovery proceedings shall be initiated in pursuance of the assessment which has been affirmed by the impugned order dated 17/6/2009.

Order Date :- 11.8.2009

SB

Court No. - 2

Case :- WRIT - C No. - 40419 of 2009

Petitioner :- Mahendra Pratap Singh

Respondent :- Kanpur Electricity Supply Company Ltd. (Kesco) And Others

Petitioner Counsel :- H.N. Singh, B. Narayan Singh

Respondent Counsel :- Mridul Tripathi

Hon'ble Ashok Bhushan, J.

Hon'ble Ram Autar Singh, J.

Three weeks further time is allowed to learned counsel for the respondents to file counter affidavit.

List in the week commencing 29th September, 2009.

Interim order already granted shall continue till then.

Order Date :- 3.9.2009

AR

Court No. - 2

Case :- WRIT - C No. - 40419 of 2009

Petitioner :- Mahendra Pratap Singh

Respondent :- Kanpur Electricity Supply Company Ltd. (Kesco) And Others

Petitioner Counsel :- H.N. Singh, B. Narayan Singh

Respondent Counsel :- Mridul Tripathi

Hon'ble R.K. Agrawal, J.

Hon'ble Mrs. Jayashree Tiwari, J.

No time is left. Interim order is expiring today.

List in the next cause list.

Interim order is extended till the next date of listing.

Order Date :- 5.10.2009

AKT

Court No. - 2

Case :- WRIT - C No. - 40419 of 2009

Petitioner :- Mahendra Pratap Singh

Respondent :- Kanpur Electricity Supply Company Ltd. (Kesco) And Others

Petitioner Counsel :- H.N. Singh, B. Narayan Singh

Respondent Counsel :- Mridul Tripathi

Hon'ble R.K. Agrawal, J.

Hon'ble Mrs. Jayashree Tiwari, J.

No time left. The interim order is expiring today. List in the next cause list.
The interim order is extended till the next date of listing.

Order Date :- 22.10.2009

samz

Court No. - 2

Case :- WRIT - C No. - 40419 of 2009

Petitioner :- Mahendra Pratap Singh

Respondent :- Kanpur Electricity Supply Company Ltd. (Kesco) And Others

Petitioner Counsel :- H.N. Singh, B. Narayan Singh

Respondent Counsel :- Mridul Tripathi

Hon'ble R.K. Agrawal, J.

Hon'ble Mrs. Jayashree Tiwari, J.

As prayed, rejoinder affidavit may be filed within two weeks.

List on 24.11.2009.

Interim order passed earlier is extended till then.

Order Date :- 5.11.2009

P.P.

Court No. - 38

Case :- WRIT - C No. - 40419 of 2009

Petitioner :- Mahendra Pratap Singh

Respondent :- Kanpur Electricity Supply Company Ltd.
(Kesco) And Others

Counsel for Petitioner :- H.N. Singh, B. Narayan Singh

Counsel for Respondent :- Mridul Tripathi

Hon'ble Abhinava Upadhya, J.

Hon'ble Rajiv Gupta, J.

List in the next cause list showing the name of Sri S.K. Yadav, as counsel for the respondent.

Order Date :- 20.9.2018

Arun Gangwar

.

(Rajiv Gupta, J.) (Abhinava Upadhya, J.)

Court No. - 40

Case :- WRIT - C No. - 40419 of 2009

Petitioner :- Mahendra Pratap Singh

Respondent :- Kanpur Electricity Supply Company Ltd.
Kesco And Others

Counsel for Petitioner :- H.N. Singh,B. Narayan Singh

Counsel for Respondent :- Mridul Tripathi,Dr.S.K.Yadav

Hon'ble Siddhartha Varma,J.

Hon'ble Ajit Singh,J.

The case has been taken up in the revised call.

No one is present for the parties to press the writ petition.

The writ petition is, accordingly, dismissed for want of prosecution.

Interim order, if any, stands vacated.

Order Date :- 19.9.2022

vkj

(Ajit Singh, J.) (Siddhartha Varma,J.)